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Dear Interested Party

Re: Request for submissions: Consortium comprising Brookfield, Qube & others – proposed acquisition of Asciano Limited

The Australian Competition and Consumer Commission (**ACCC**) is seeking your views on the proposed acquisition of the shares and assets of Asciano Limited (**Asciano**) by various members of a consortium comprising Brookfield Infrastructure Partners L.P. (and certain of its affiliates) (**Brookfield**), Qube Holdings Limited (**Qube**), Global Infrastructure Management, LLC (on behalf of itself and its managed funds and clients) (**GIP**), Canada Pension Plan Investment Board (**CPPIB**), CIC Capital Corporation (**CIC Capital**), British Columbia Investment Management Corporation (**bcIMC**), GIC Private Limited (**GIC**) and Qatar Investment Authority (**QIA**) (collectively, the **Consortium**).

The ACCC was reviewing two separate proposed acquisitions of Asciano, each of which involved some of the consortium members listed above. However, on 15 March 2016 Asciano announced that it had entered into new agreements with the Consortium. Following this announcement, the ACCC ceased its consideration of the two earlier proposed acquisitions.

There are three components to the proposed acquisition:

- GIP, CPPIB, CIC Capital, GIC and bcIMC propose to acquire Asciano's Pacific National rail business through a bid vehicle (the **rail acquisition**)
- Qube, Brookfield, GIC, bcIMC and QIA propose to acquire Asciano's Patrick container terminal division (not including Asciano's 50 per cent interest in ACFS Port Logistics Pty Ltd (the **ACFS joint venture**) or Asciano's 50 per cent interest in Australian Amalgamated Terminals (**AAT**)) (the **ports acquisition**)
- Brookfield, GIC, bcIMC and QIA propose to acquire Asciano's Bulk & Automotive Port Services (**BAPS**) division, Asciano's 50 per cent interest in the ACFS joint venture and Asciano's 50 per cent interest in AAT (the **BAPS acquisition**).

Qube will not acquire Asciano's 50 per cent interest in AAT as part of this transaction, but has indicated that it will acquire this interest at a later date¹ or nominate a third party buyer.

¹ Subject to ACCC, court or tribunal approval.

Qube is an Australian provider of import and export logistics services. Brookfield is a global asset manager with interests in property, renewable power and infrastructure assets. GIP is a global fund manager that invests in infrastructure assets in the energy, transport and water/waste sectors. CPPIB is a global investment manager, which invests funds not needed to pay current benefits for the Canada Pension Plan (**CPP**). GIC is a global investor established by the Government of Singapore that invests in infrastructure assets. bcIMC is a Canadian investment manager that invests on behalf of public sector clients in British Columbia. QIA is a sovereign wealth fund based in Qatar. Further details regarding the proposed acquisitions and the parties involved can be found at **Attachment A**.

The ACCC's investigation is focussed on the impact on competition of each component of the proposed acquisition.

In relation to the proposed rail acquisition, we are seeking your views on any competition issues that may arise from:

- combining Asciano's Pacific National business with any relevant GIP, CPPIB, CIC Capital, GIC and bcIMC investment or operations
- common financial interests between consortium members created by the transaction structure.

In relation to the proposed ports acquisition, we are seeking your views on whether:

- it would result in Qube and/or Brookfield having the ability or incentive to favour its own businesses at the expense of its competitors at various levels of the container supply chain
- there are any differences between Asciano's current ability or incentive to favour its own businesses and Qube and/or Brookfield's potential ability or incentive to favour themselves after the acquisition.

In relation to the proposed BAPS acquisition, we are seeking your views on:

- any competition issues that may arise from combining Asciano's BAPS business and Asciano's 50 per cent interest in the ACFS joint venture with any relevant Brookfield, GIC, bcIMC and QIA investment or operations
- any reduction in the competitive significance or viability of any of the businesses in the BAPS division or the ACFS joint venture following the proposed acquisition.

Further issues you may wish to address are set out in **Attachment B**.

This matter is public and you can forward this letter to anybody who may be interested.

The legal test which the ACCC applies in considering the proposed acquisition is in section 50 of the *Competition and Consumer Act 2010* (the **Act**). Section 50 prohibits acquisitions that are likely to have the effect of substantially lessening competition in a market.

Please provide your response by no later than **5pm on 18 April 2016**. Responses may be emailed to mergers@acc.gov.au with the title: *Submission re: Qube Brookfield Asciano - attention Nick Cooke/Rebecca Holland*. If you would like to discuss the matter with ACCC officers over the telephone or in person, or have any questions about this letter, please contact Nick Cooke on 03 9290 6987 or Rebecca Holland on 03 9658 6467.

Updates regarding the ACCC's investigation will be available on the ACCC's Public

Mergers Register ([ACCC mergers register](#)).

Confidentiality of submissions

The ACCC will not publish submissions regarding the proposed acquisition. We will not disclose submissions to third parties (except our advisors/consultants) unless compelled by law (for example, under freedom of information legislation or during court proceedings) or in accordance with s155AAA of the *Competition and Consumer Act 2010*. Where the ACCC is required to disclose confidential information, the ACCC will notify you in advance where possible so that you may have an opportunity to be heard. Therefore, if the information provided to the ACCC is of a confidential nature, please indicate as such. Our [Informal Merger Review Process Guidelines](#) contain more information on confidentiality.

Yours sincerely

A handwritten signature in blue ink, appearing to read 'Tom Leuner', is positioned above the printed name.

Tom Leuner
General Manager
Merger Investigations

Attachment A – background

Background to the proposed transaction

The Consortium proposing to acquire Asciano and its assets comprises Brookfield, Qube, GIP, CPPIB, CIC Capital, GIC, bcIMC, and QIA.

There are three components to the proposed acquisition:

1. **Rail acquisition:** GIP, CPPIB, CIC Capital, GIC and bcIMC (the **rail consortium**) propose to acquire the Pacific National rail business and certain intermodal terminal operations. The percentage ownership stakes in the business will be:
 - CPPIB – 33 per cent
 - GIP – 27 per cent
 - CIC Capital – 16 per cent
 - GIC – 12 per cent
 - bcIMC – 12 per cent.
2. **BAPS acquisition:** Brookfield, GIC, bcIMC and QIA (the **Brookfield parties**) propose to acquire:
 - Asciano's BAPS division
 - Asciano's 50 per cent interest in the ACFS joint venture
 - Asciano's 50 per cent interest in AAT (collectively referred to as the BAPS businesses).

The percentage ownership stakes in the business will be:

- Brookfield – 67 per cent
 - GIC – 11 per cent
 - bcIMC – 11 per cent
 - QIA – 11 per cent.
3. **Ports acquisition:** Qube and the Brookfield parties propose to acquire Asciano's Patrick container terminal business, excluding Asciano's 50 per cent interest in the ACFS joint venture and Asciano's 50 per cent interest in AAT.

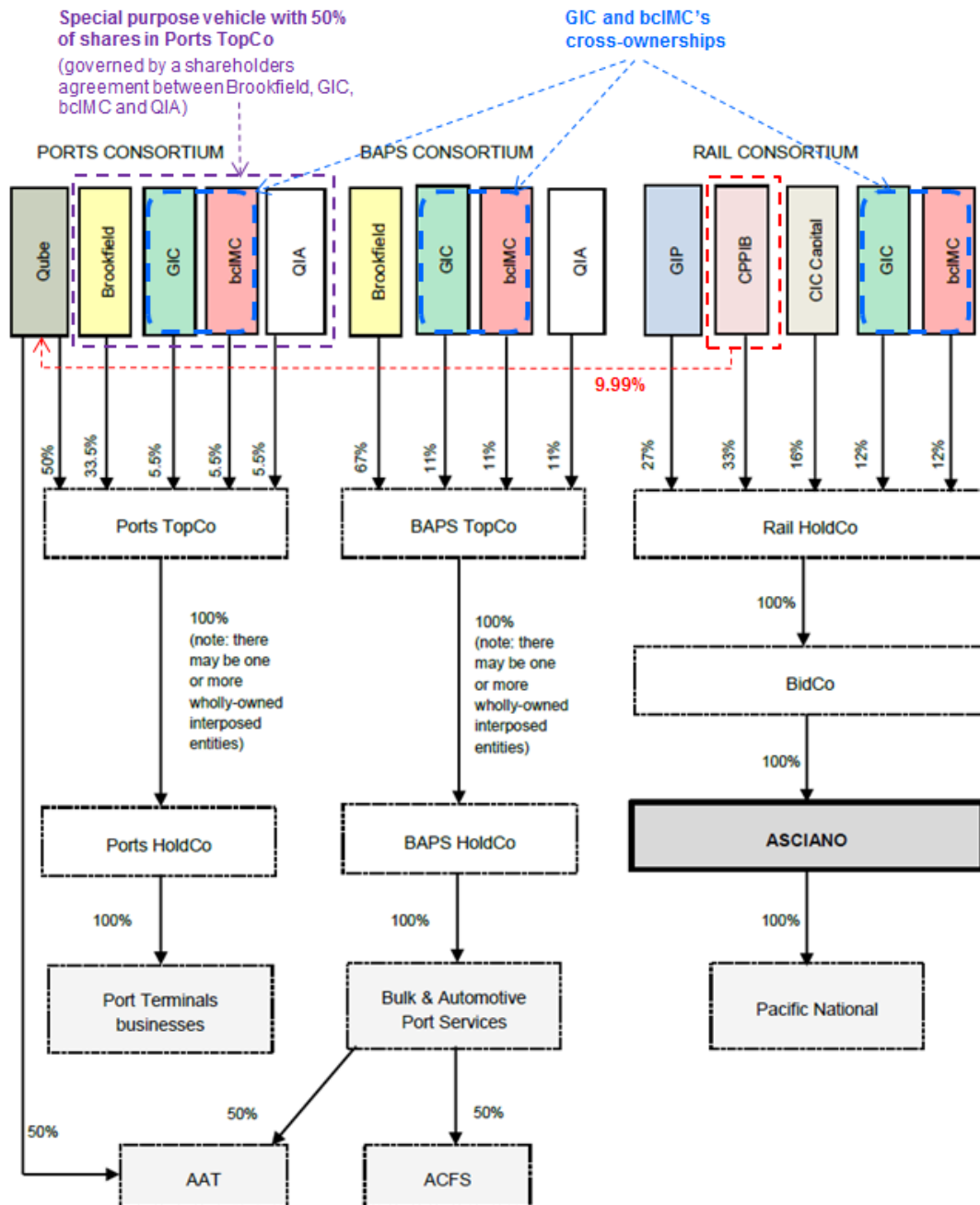
The percentage ownership stakes in the business will be:

- Qube – 50 per cent
- Brookfield – 33.5 per cent
- GIC – 5.5 per cent
- bcIMC – 5.5 per cent
- QIA – 5.5 per cent.

Attachment C details the Asciano assets and operations to be acquired under each component of the proposed acquisition. Aerial photographs of the Asciano container and logistics assets at each port are at **Attachment D**.

Diagram 1 (below) summarises the ownership of each Asciano division post-transaction, including the relationships between each of the parties.

Diagram 1: overview of proposed acquisition



As illustrated in Diagram 1 above, a number of commercial relationships exist between the Consortium parties:

- The Brookfield parties will participate in the ports acquisition through a special purpose vehicle. This special purpose vehicle will hold the Brookfield parties' collective 50 per cent interest in the Port Terminals businesses in accordance with the terms of a shareholder's agreement between the Brookfield parties (as indicated by the purple dashed lines in the diagram above)
- CPPIB intends to acquire a 9.99 per cent shareholding in Qube (as indicated by the red dashed lines in the diagram above)
- GIC and bclMC will each hold 12 per cent of Rail HoldCo, 5.5 per cent of Ports

TopCo and 11 per cent of BAPS TopCo (as indicated by the blue dashed lines in the diagram above)

- Brookfield and QIA will each hold ownership interests in both Ports TopCo and BAPS TopCo.

The ACCC considers that these underlying commercial relationships may lead to a level of common financial interest within the Consortium despite the division of the proposed acquisition of Asciano into three separate components.

The ACCC will therefore take these commercial relationships into account in its review of each of the rail acquisition, the ports acquisition and the BAPS acquisition.

Information about the proposed acquirers

a. Qube

Qube is listed on the Australian Securities Exchange and provides import and export logistics services in Australia. Qube currently divides its operations into three divisions, which are described below.

i. Qube Ports and Bulk

Qube Ports and Bulk is a major provider of wharf-side port logistics and port management services in Australia. Qube Ports and Bulk offers logistics services, management and expertise extending from port and facility development, vessel management, warehousing and distribution, stevedoring services and cargo handling for automotive, general cargo and dry bulk commodities for both import and export supply chains.

Qube Ports and Bulk operations consist of on-wharf and port precinct facilities in all Australian capital city ports and both dry bulk materials and general cargo facilities in a further 24 regional port locations. Qube has a range of interests in cargo storage, shed operations, materials handling, heavy-haul transport, warehousing and distribution operations across a broad mix of industries and critical logistic chains.

ii. Qube Logistics

Qube Logistics operates services covering road and rail transport, warehousing and distribution, container parks and related services, and intermodal logistics hubs including rail terminals and international freight forwarding.

iii. Qube Strategic Assets

Qube Strategic Assets manages the development of the Moorebank Intermodal Terminal and warehouse facilities, as well as the Minto property that is currently under lease to Prixcar (a provider of automotive transport, pre-delivery inspection, storage and related services).

iv. AAT

Qube owns 50 per cent of AAT, with Asciano holding the remaining 50 per cent. AAT operates multi-user port terminals with facilities for importing and exporting motor vehicles and general cargo. AAT operates automotive terminals at Port Adelaide, Port of Melbourne,

Port Kembla and Port of Brisbane. AAT is not a stevedore, but provides facilities and access to stevedores holding licences for AAT terminals. Qube and Asciano provide stevedoring services at all of AAT's terminals.

v. Prixcar

Qube has an indirect interest in Prixcar Services Pty Limited, a supplier of pre-delivery inspection motor vehicle services, which operates at each AAT terminal. Qube has a 50 per cent shareholding in K Line Auto Logistics Pty Ltd, which in turn has a 50 per cent interest in Prixcar. Toll PDI Investments Pty Ltd holds the remaining 50 per cent of Prixcar.

b. Brookfield

Brookfield is a global asset manager with interests in property, renewable power and infrastructure assets. Brookfield has approximately USD 200 billion of assets under management. Brookfield's principal Australian businesses are the Dalrymple Bay Coal Terminal (**DBCT**) and Brookfield Rail.

i. Dalrymple Bay Coal Terminal

The DBCT business comprises a port facility that exports coal mined in the central Bowen Basin region of Queensland.

DBCT is owned by the Queensland State Government and is leased to DBCT Management (a related entity of Brookfield) through a 50 year lease signed in 2001, with a further 49 year option.

DBCT is declared for third party access under the *Queensland Competition Authority Act 1997* (Qld) with terms and conditions of access regulated by a Queensland Competition Authority approved access undertaking.

Further details about the relevant access arrangements at DBCT and copies of the relevant access documentation are available at:
<http://www.dbctm.com.au/aboutdbct/documents.aspx>.

ii. Brookfield Rail

Brookfield Rail is a below rail access provider which operates over 5,100 kilometres of track and related infrastructure in the southwest region of Western Australia under a lease from the Western Australian Government, with approximately 35 years remaining.

The Brookfield Rail network is subject to the *Railways Act 1998* (WA) and the Railways (Access) Code 2000 and is regulated by the Economic Regulatory Authority of Western Australia. This regime provides a framework for access to Western Australia's railway network, including Brookfield Rail's network.

Further information about the access regime is available at:
<https://www.erawa.com.au/rail/rail-access>.

c. GIP

GIP is a global, independent infrastructure investor, which targets investments in single assets and companies in power and utilities, natural resources infrastructure, air transport infrastructure, seaports, freight railroad, water distribution and treatment and waste

management. GIP manages over USD 29 billion for its investors.

NSW Ports is the operator and lessee of Port Botany and Port Kembla under long-term leases and other agreements with the State of New South Wales. One of the investors in NSW Ports is QSuper. GIP manages QSuper's 15 per cent equity interest in NSW Ports and, as part of these management rights, GIP appoints a board representative to NSW Ports on behalf of Q Super. Currently, this board representative is Mr Ari Droga, a founding partner of GIP.

In 2013, GIP invested in Terminal Investment Limited SA (**TIL**), which was established by Mediterranean Shipping Company, the world's second largest container shipping line. TIL is the world's sixth largest global container terminal operator but does not operate any terminals in Australia.

d. CPPIB

CPPIB is a professional investment management organisation that invests funds not needed by the CPP to pay current benefits. The CPP is Canada's national pension plan which operates for the benefit of 19 million contributors and beneficiaries. CPPIB invests in public and private equities, real estate, infrastructure and fixed income instruments. As of 31 December 2015, the CPP Fund totalled CAD 282.6 billion, about CAD 7.1 billion of which is invested in Australia.

CPPIB's Australian infrastructure investments include a 25 per cent interest in the Westlink M7 toll road in western Sydney and in the NorthConnex tolled tunnel project located in the northwest of Sydney. CPPIB also holds certain real estate investments in Australia, including interests in joint ventures with the GoodmanGroup that focus on high quality industrial properties (including logistics and business park assets) in Australia.

e. CIC Capital

CIC Capital is a subsidiary of China Investment Corporation. China Investment Corporation was founded on 29 September 2007 as a vehicle to diversify China's foreign exchange holdings and seek maximum returns for its shareholder within acceptable risk tolerances. The overseas investment and management activities of China Investment Corporation are undertaken by CIC International Co., Ltd. (CIC International) and CIC Capital.

Both CIC International and CIC Capital are market-oriented commercial entities with a specialised mandate and global reach. CIC Capital was incorporated in January 2015 with a mandate to specialise in making direct investments to refine China Investment Corporation's overall portfolio management and enhance investment on long-term assets. As of the end of 2014, China Investment Capital's total assets amounted to USD 746.7 billion.

f. GIC

GIC was incorporated in 1981 in Singapore. The aim of GIC is to achieve good long term returns for the Government of Singapore. By achieving good long term returns, GIC fulfils its responsibility to preserve and enhance Singapore's foreign reserves.

GIC is one of the largest investment management organisations in the world. It employs over 1,200 people investing over USD 100 billion in more than 40 countries.

g. bcIMC

bcIMC is one of Canada's largest institutional investors within the capital markets investing on behalf of public sector clients in British Columbia. bcIMC's activities help finance the retirement benefits of more than 526,000 plan members, as well as the insurance and benefit funds that cover over 2.2 million workers in British Columbia.

bcIMC's mandate is to invest the funds not currently required by its clients to pay pensions and other benefits. As their investment manager, bcIMC is responsible for growing long-term client wealth while also protecting the value of their funds. bcIMC offers investment products across a wide range of asset classes, including strategic investment themes. Among its other investments, bcIMC has a 9 per cent interest in DBCT Management, the long term lease holder of the DBCT.

h. QIA

QIA is a sovereign wealth fund based in Qatar. QIA was established as a government entity pursuant to the Emiri Decision No. 22 of 2005. The purpose of QIA is to develop, invest and manage reserve funds and other assets assigned to it by the State of Qatar.

Information about the target

Asciano has two principal operating divisions: Pacific National and Patrick (which comprises of Patrick Container Terminals & Logistics and Patrick BAPS. These are described below:

a. Pacific National

Pacific National is one of the largest providers of above rail freight haulage services in Australia. It provides a range of services in the containerised, break bulk and bulk markets. Pacific National hauls a range of bulk goods for domestic and export consumption including coal, grain and other construction and infrastructure materials.

b. Patrick Terminals and Logistics

Patrick Terminals and Logistics is a major terminal operator in Australia and one of two container terminal operators providing container stevedoring services at each of the four largest container ports in Australia: Swanson Dock in Melbourne, Port Botany in Sydney, Fisherman Islands in Brisbane and Port of Fremantle in Western Australia.² These stevedoring services and related container terminal operations constitute Patrick Container Terminals.

Patrick Terminals and Logistics also has a 50% interest in the ACFS joint venture which provides landside logistics services.

As part of the proposed ports acquisition, Qube, Brookfield, GIC, bcIMC and QIA would acquire control of Patrick Terminals and Logistics, excluding Asciano's interest in the ACFS joint venture. As part of the proposed BAPS acquisition, Brookfield, GIC, bcIMC and QIA would acquire the Asciano interest in the ACFS joint venture.

² A third container terminal operator, Hutchison Ports, provides container stevedoring services at Port Botany in Sydney and in Brisbane.

c. Patrick Bulk and Automotive Port Services

BAPS specialises in the management of bulk ports and supporting infrastructure and the provision of port related logistics at over 40 sites across Australia and New Zealand. BAPS includes the automotive and general stevedoring business.

Asciano has an 80 per cent interest in Patrick Autocare Pty Limited (Autocare), which is a supplier of pre-delivery inspection motor vehicle services and is also part of the BAPS division. BAPS also operates an integrated service for the transportation, processing and storage of motor vehicles from the port to the beneficial freight owner.

d. AAT

As indicated above, Asciano owns 50 per cent of AAT, with Qube holding the remaining 50 per cent.

Potential future review of Qube's acquisition of AAT

As outlined above, if the proposed acquisitions proceed to completion, Qube will acquire Asciano's 50 per cent interest in AAT at a later date or nominate a third party buyer. Any such future acquisition by Qube would be subject to ACCC, court or tribunal approval.

Attachment B – Questions for market participants

As set out above, on 15 March 2016 the ACCC discontinued two separate reviews into the proposed acquisition of Asciano by:

- Qube, GIP, CPPIB and CIC Capital
- Brookfield, GIC and bclMC.

The ACCC will take into account all submissions made to these two reviews in its consideration of the new joint proposal. However, we encourage parties to make additional submissions to the current review if they consider that this review raises additional issues or changes their previous views.

Please provide reasons for your answers to the following questions, where relevant.

a. Background

1. Please describe your relationship with the businesses of Qube, Brookfield, GIP, CPPIB, CIC Capital, GIC, bclMC, QIA or Asciano (e.g. customer, competitor). In particular, please describe:
 - a) which part of the business you have a commercial relationship with
 - b) the nature of the facilities and services that you supply in competition with, supply to, or acquire from the Consortium members and/or Asciano (e.g. road freight, rail terminals, warehouses or empty container parks at or near a port).

b. Questions on cross-shareholdings

As outlined above, the transaction structure will involve a level of common financial interest between the consortium members. In particular:

- CPPIB would hold up to 9.99 per cent of Qube and a 33 per cent interest in Pacific National
 - GIC and bclMC will both have a small interest in each of Pacific National, Patrick Container Terminals and the BAPS businesses.
2. Please comment on the extent to which CPPIB holding up to 9.99 per cent of the shares in Qube and a 33 per cent interest in Pacific National would result in CPPIB having the ability and incentive to operate or influence Pacific National in a way that causes competition concerns.
 3. Please comment on the extent to which any of the cross-shareholdings could result in the consortium members having the ability and incentive to operate any Asciano business in a way that causes competition concerns.

c. Questions on specific aspects of the proposed acquisition

If you wish to make a submission on the automotive supply chain, [see section \(i\)](#)

If you wish to make a submission on the container supply chain, [see section \(ii\)](#)

If you wish to make a submission on Pacific National, [see section \(iii\)](#).

i. Automotive supply chain

As a result of the proposed acquisition, the Brookfield parties would acquire Asciano's BAPS division and Asciano's 50 per cent interest in the ACFS joint venture. While the Brookfield parties would initially acquire Asciano's 50 per cent interest in AAT, this interest will later be sold to Qube (subject to ACCC, court or tribunal approval) or a third party buyer nominated by Qube.

4. Would the Asciano BAPS division continue to be viable, or would it be less of a competitive constraint in any relevant markets, if it were no longer aligned with the other divisions of Asciano?
5. Would the Patrick Automotive and General Stevedoring business continue to be viable, or would it be less of a competitive constraint in any relevant markets, if it were no longer aligned with AAT?
6. Under the proposed transaction, the Brookfield parties may only control Asciano's 50 per cent interest in AAT for a short period. In the interim period between the Brookfield parties acquiring AAT and selling it, would the Brookfield parties operate the Patrick Automotive and General Stevedoring business and Autocare business independently of Qube in a competitive and viable way?

ii. Container supply chain

The proposed ports acquisition will result in Patrick Container Terminals being vertically aligned with Qube's intermodal terminals, warehousing facilities, empty container parks and other activities in the container supply chain as well as the ACFS joint venture.

The ACCC is considering whether the proposed acquisition would give Qube and/or the Brookfield parties the ability and incentive to discriminate against competitors. In particular:

- Whether Qube's 50 per cent interest in Patrick Container Terminals would give it the ability and incentive to discriminate against or foreclose its competitors and if so, whether the Brookfield parties' 50 per cent interest in Patrick Container Terminals would reduce Qube's ability to act in this way.
- Whether the vertical alignment of Patrick Container Terminals with Qube's logistics businesses *and* the ACFS joint venture will increase the ability and incentive of Qube and the Brookfield parties to together operate Patrick Container Terminals to discriminate against or foreclose their competitors in other parts of the container supply chain.

In considering these potential issues, the ACCC is focussing on whether this would give Qube and Brookfield any greater ability or incentive to discriminate against or foreclose its competitors than Asciano currently has via its current interests in the ACFS joint venture and Pacific National.

The ACCC is also considering whether the vertical alignment between Patrick Container Terminals and Qube's activities in the container supply chain will give it a greater ability to bundle services than Asciano currently.

The ACCC is also considering whether the ACFS joint venture would be less of a competitive constraint if it is no longer under common ownership with Patrick Container Terminals.

Ability of container stevedore to discriminate

7. In relation to each of the relevant ports, please comment on the ability of Patrick Container Terminals to be operated in such a way as to discriminate between or foreclose users. In particular:
- a) Please comment on the ability of landside users to use alternative container terminals in response to an attempt by Patrick Container Terminals to discriminate against or foreclose landside users that compete with Qube/Brookfield's own container logistics operations. Explain any limits on the ability of landside users to switch to a different container terminal due to their contractual arrangements with customers (e.g. if their customers are using a shipping line that determines the container terminal being used) and due to capacity constraints at alternative container terminals.
 - b) Please comment on the ability of the stevedore to use 1-Stop, or any other vehicle booking system, to favour its own trains and trucks when they arrive at a Patrick container terminal. In your response, please outline any protections that are in place to restrict the stevedore's ability to give preferential treatment to any associated transport operator.
 - c) Please comment on the extent to which any port-side arrangements would prevent Qube and or the Brookfield parties from foreclosing shipping lines' or transport operators' access to Patrick Container Terminals.
 - d) Please comment on the ability of the stevedore to operate the terminal in a way that favours its own intermodal terminals inland from the port, particularly at Port Botany and Port of Melbourne.
 - Please comment on the ability of the stevedore to require operators to use an intermodal terminal rather than transporting containers directly to the port. Please also comment on the potential cost to rail transport operators and importers/exporters if they were required to use an intermodal terminal.
 - Please comment on any capacity constraints at any intermodal terminals at or near Port Botany or the Port of Melbourne
 - Please comment on the extent to which existing or proposed intermodal terminals at or near Port Botany could be used as an alternative to the Moorebank Intermodal Terminal after it is operational.
 - e) Please comment on the ability of the stevedore to operate the terminal in a way that otherwise discriminates in favour of its landside transport or logistics

businesses.

8. In relation to each relevant port, please comment on the extent to which Qube and/or Brookfield would have any greater ability to discriminate between or foreclose competing users than Asciano does currently.
9. Under the proposed transaction, Qube would have a 50 per cent interest and the Brookfield parties a 50 per cent interest in Patrick Container Terminals. Please comment on the extent to which the Brookfield parties having a 50 per cent interest in Patrick Container Terminals would reduce Qube's ability to discriminate between or foreclose users.

Incentive of container stevedore to discriminate

Under the proposed acquisition, Patrick Container Terminals would be aligned with both Qube's logistics business *and* the ACFS joint venture (through the Brookfield parties).

10. Please comment on:

- a) Whether Qube would have an incentive to operate Patrick Container Terminals in a way that discriminates against rival users of each port. In other words, whether it would be profitable for Qube to engage in discriminatory or foreclosure conduct because the benefit it receives (by damaging competitors and promoting its own logistics interests) at other levels of the container supply chain would outweigh the detrimental impact from operating Patrick Container Terminals in this manner.
- b) Whether Qube and Brookfield have the incentive to together operate Patrick Container Terminals in a way that discriminates in favour of both Qube's Logistics interests *and* the ACFS joint venture.

In answering these questions please comment on:

- c) Whether Patrick Container Terminals' overriding motivation is to receive and deliver all shipping lines' containers irrespective of whether a transport or logistics provider is a downstream competitor.
- d) Whether Patrick Container Terminals has such excess capacity that it has a greater incentive to maximise throughput rather than to discriminate between or foreclose users.
- e) Whether Patrick Container Terminals would have an incentive to discriminate against rival providers of rail-to-port services.
- f) Whether these incentives would be greater than Asciano's current incentive to discriminate or foreclose users. In particular, please comment on any relevant differences between Qube and Brookfield's activities at other levels of the container supply chain and Asciano's activities.
- g) Whether Asciano's incentive to discriminate currently is lower than Qube post-acquisition since Asciano has only a 50 per cent interest in the ACFS joint venture whereas Qube has 100 per cent ownership of its downstream container transport and logistics businesses.

11. Please comment on the extent to which customers of rail container transport services have the ability to shift freight to road container transport in response to any increase in prices or reduction in competition in the supply of rail-to-port transport services, particularly into Port Botany. In your response, please specify:
 - a) the types of freight that can and cannot be shifted to road transport
 - b) the additional costs that would be involved in shifting volumes to road
 - c) how easy it would be for customers to switch to road
 - d) any differences in this ability that depend on the port to or from which the freight is being delivered
 - e) any differences in this ability that depend on the origin or destination of the freight, for example whether it originates in rural areas or in metropolitan areas or its destination is an intermodal terminal inland from the relevant port.
12. Please comment on whether past integration/separation of container stevedoring with landside transport and logistics businesses demonstrates the presence or absence of an ability and incentive to discriminate between or foreclose users. For example:
 - a) If Asciano could operate Patrick Container Terminals to its advantage in downstream activities, why did it enter into a joint venture with ACFS rather than expand its own downstream businesses?
 - b) Why did DP World not retain its Australian landside logistics business?
13. Please comment on whether Qube's incentive to utilise its interest in Patrick Container Terminals to discriminate in favour of its own rail operations would be affected by the Brookfield parties having a 50 per cent interest in Patrick Container Terminals and/or a 50 per cent interest in the ACFS joint venture.

Ability of Qube to bundle

14. To what extent would vertical alignment between Patrick Container Terminals and Qube's logistics businesses result in Qube having a greater ability and incentive than Asciano currently has to bundle container stevedoring services at Patrick Container Terminals with other services provided by Qube in the broader container supply chain.
15. Please comment on whether other container stevedores could offer a competitive bundle in response, either via expanding into other parts of the supply chain or partnering with other businesses.
16. Please comment on what other transport services can be bundled with stevedoring services, in practice. In particular, since shipping lines acquire stevedoring services, are those services only able to be bundled with empty container park services (which shipping lines also acquire), or can they be bundled with other landside transport and logistics services (and if so, how)?

On-going viability or competitive strength of the ACFS joint venture

Under the proposed acquisition, Patrick Container Terminals will continue to hold the lease for a number of empty container parks and warehouse facilities operated by the ACFS joint venture. This means that post-acquisition, Qube and the Brookfield parties would hold these head leases.

17. Please comment on any competition issues that may arise due to Qube and the Brookfield parties holding the head leases for the facilities operated by the ACFS joint venture.
18. Would the ACFS joint venture continue to be viable, or would it be less of a competitive constraint in any relevant markets, if it were no longer aligned with the Patrick Container Terminals?

Access to competitively sensitive information

19. Please provide details of any concerns you may have regarding any commercially or competitively sensitive information of third parties (particularly, competitors of Qube Logistics) that may be held by Qube (and the Brookfield parties) in their role as container stevedore. Please also provide details of any commercially or competitively sensitive information provided to Qube Logistics at any other level of the container supply chain that could be used to advantage Patrick Container Terminals. In your response, please comment on:
 - a) the types of such information that would be competitively significant
 - b) the adequacy of current ring fencing arrangements that might prevent the inappropriate disclosure of such information, for example in Patrick Container Terminals' lease agreements with relevant Port Authorities.
20. Please comment on the extent to which there is any greater concern with this use of sensitive information compared to the current situation (i.e. Patrick Container Terminals being under Asciano ownership).

Empty container parks

21. Please comment on whether container park facilities at 'off-port' locations compete with and act as a constraint on 'on-port' container park facilities.
22. Please identify any barriers to entry in the market for empty container park services, including regulatory barriers such as planning regulations.
23. Please comment on the ability of users of empty container parks to switch to alternate empty container park facilities.
24. Please comment on the extent to which Qube has a stronger competitive position than Asciano in the supply of container park services at the relevant ports.
25. Please comment on the extent to which Qube would have any greater ability or incentive than Asciano currently to leverage any market power in the supply of empty container park services to benefit its container stevedoring operations.

iii. Pacific National

As a result of the proposed rail acquisition, the rail consortium would acquire Pacific National.

26. Please comment on whether the proposed rail acquisition would give rise to any competition issues due to any of GIP's interests, including its management of QSuper's investment in NSW Ports and its investment in TIL (see page 8 for a description of TIL).

27. Please comment on whether the proposed rail acquisition would give rise to any competition issues due to any of CPPIB's investments, including the infrastructure and real estate investments described on page 8.
28. Please comment on whether the proposed rail acquisition would give rise to any competition issues due to CIC Capital's, GIC's or bcIMC's investments. For example, bcIMC has a 9 per cent interest in DBCT Management, the long term leaseholder of the Dalrymple Bay Coal Terminal.

iv. Other general questions

29. Please provide any additional information or comments, or identify other competition issues, that you consider relevant to the ACCC's consideration of the proposed acquisition under section 50 of the Act.

Attachment C – Overview of relevant Asciano assets and operations

Asciano has two principal operating divisions: Pacific National and Patrick (which comprises of Patrick Container Terminals & Logistics and Patrick Bulk & Automotive Port Services (**BAPS**)). The following table sets out the operations of Asciano divided in the following way:

- Port Terminal Businesses which Qube, Brookfield, GIC, bcIMC and QIA propose to acquire as part of the Ports Share Purchase Agreement.

Ports entities = Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).

- BAPS and Patrick Logistics businesses and other assets which will be acquired by BAPS Holdco (jointly-owned by Brookfield, GIC, bcIMC and QIA) under the BAPS Share Purchase Agreement.

BAPS entities = ACFS Port Logistics Pty Ltd; Patrick Autocare Pty Ltd; Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries).

- Patrick 50% interest in AAT which is to be acquired by Qube subject to a separate ACCC review.
- Pacific National business that will remain with Asciano (under ownership of the Rail Consortium comprising GIP, CPPIB, CIC Capital, GIC and bcIMC).

Asciano/ PN entities = Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).

Item	Operation	Address	Description	Relevant operating entity
	 Patrick Container Terminals & Logistics			
	<i>Patrick Container Terminals</i>			
1	Fisherman Islands, Brisbane Container Terminal	Curlew Street, Port of Brisbane QLD 4178 See aerial delineation provided separately. https://www.portbris.com.au/shipping-operations/berths-and-terminals	- Lease between the Port of Brisbane landlord and Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries) expires in 2045. - Quay length of 922 metres with 3 berths. - Equipment includes four Post-Panamax cranes (two of which are twin-lift container cranes) and one Panamax single-lift crane, 31 straddle carriers and other cargo handling equipment. - Annual capacity is approx. 0.8 million (TEU).	Ports entity
2	CargoLink		Empty and full container exchange adjacent to and for the container terminal at Fisherman Islands, Brisbane. This site forms part of the container terminal lease.	BAPS entity (as per existing licence /services agreement)

Item	Operation	Address	Description	Relevant operating entity
			ACFS Port Logistics Pty Ltd operates this site under a licence granted by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	arrangements).
3	Port Botany Container Terminal	Penrhyn Road Port Botany NSW 2036 See aerial delineation provided separately. http://www.nswportsbotany.com.au/news/article/port-botany-handbook-2014	- Lease between the Port Botany landlord and Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries) expires in 2043. - Quay length of 1,400 metres with 4 berths. - Rail siding. See aerial photograph provided separately. - Equipment includes seven twin-lift and one single-lift quay cranes, of which five also have a heavy lift capacity of 65 tonnes, 45 straddle carriers and other cargo handling equipment. - Annual capacity is approx. 1.6 million (TEU).	Ports entity
4	CargoLink		Empty container exchange adjacent to and for the container terminal at Port Botany. This site forms part of the container terminal lease. ACFS Port Logistics Pty Ltd operates this site under a licence granted by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	BAPS entity (as per existing licence /services agreement arrangements).
5	Port Melbourne Container Terminal - East Swanson Dock	East Swanson Dock Terminal, Phillipps Road, Footscray VIC 3011 See aerial delineation provided separately. http://www.portofmelbourne.com.au/publications/hmd-and-port-information-guide	- Lease between the Port of Melbourne Corporation landlord and Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries) expires in 2034. - Quay length of 885 metres with 3 berths - Rail siding (not currently in use). See aerial photograph provided separately. - Equipment includes 7 cranes, 54 straddle carriers and other cargo handling equipment. - Annual capacity is approx. 1.4 million (TEU).	Ports entity
6	CargoLink		Empty container exchange adjacent to and for the container terminal at East Swanson Dock. This site forms part of the container terminal lease. ACFS Port Logistics Pty Ltd operates this site under a licence granted by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	BAPS entity (as per existing licence /services agreement arrangements).

Item	Operation	Address	Description	Relevant operating entity
7	Port of Fremantle Container Terminal	Port Beach Road, North Fremantle WA 6159 See aerial delineation provided separately. http://www.fremantleports.com.au/Operations/Pages/default.aspx	- Lease between Port of Fremantle landlord and Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries) expires in 2017. A short term extension currently under consideration. - Quay length of 766 metres with 2 berths. - Equipment includes 4 cranes and 41 cargo handling pieces of equipment. - Annual capacity is approx. 0.6 million (TEU).	Ports entity
8	CargoLink		Empty container exchange adjacent to and for the container terminal at Port of Fremantle. This site forms part of the container terminal lease. ACFS Port Logistics Pty Ltd has a licence to operate part of the leased area for the purposes of the ACFS Joint Venture and agrees to provide CargoLink services if required by Patrick (not currently required). This area is shown in the aerial photograph provided separately.	Ports entity
9	1-Stop Connections and any other IT and automation systems used to manage the Container terminal operations		http://www.1-stop.biz/Pages/AboutUs.aspx  Asciano has a 50% interest in 1-Stop Connections.	Ports entity
10	Bumborah Point Container park	2 Bumborah Point Road	Container park / warehousing facility. Operations are not currently conducted by Asciano from this location.	Head lease to be retained by Ports entity. ³
11	Fisherman Islands, Brisbane Container Park	76 Port Drive, Port of Brisbane QLD 4178	Container park / warehousing facility. Operations are not currently conducted from this location.	Site to be retained by Ports entity.

³ Subject to resolution of contractual arrangements.

Item	Operation	Address	Description	Relevant operating entity
	50% interest in ACFS Joint Venture	 50% interest in ACFS Joint Venture (ACFS Port Logistics Pty Ltd)		
			ACFS owns and operates substantial container related logistics assets. This table does not provide a complete list of the ACFS Port Logistics Pty Ltd operations or assets. Further, we have identified directly below relevant ACFS Port Logistics Pty Ltd operations where those operations are conducted on Patrick owned or leased sites that were subleased to ACFS Port Logistics Pty Ltd. We note that these operations are conducted by ACFS Port Logistics Pty Ltd, not Asciano.	BAPS entity ⁴
12		Fisherman Islands, Brisbane Container Park 67 Bishop Drive, Port of Brisbane QLD 4178	Container park / warehousing facility, operated as part of ACFS Port Logistics Pty Ltd. Leased to ACFS Port Logistics Pty Ltd by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	BAPS entity Head lease to be retained by Ports entity.
13		Fisherman Islands, Brisbane Container Transport Cnr Bishop & Port Drive, Port of Brisbane QLD 4178	Container transport services provided as part of ACFS Port Logistics Pty Ltd.	BAPS entity
14		Port Botany Botany Park Gate B29, 60 Friendship Road Port Botany NSW 2036	Container park / warehouse facility that is operated as part of ACFS Port Logistics Pty Ltd. - Storage, handling and repair of empty containers. - A separate 77G Customs Bond area can store up to 1,400 TEUs. - Provides quarantine tailgate inspections, fumigation for FCL containers and freight station services. Leased to ACFS Port Logistics Pty Ltd by Asciano Holdings (Containers)	BAPS entity Head lease to be retained by Ports entity.

⁴ To be transferred to a BAPS entity from a Ports entity.

Item	Operation	Address	Description	Relevant operating entity
			Pty Ltd (through certain of its 100% owned subsidiaries).	
15		Port Botany Botany Depot and Container Transport Gate B30, 55 Friendship Road and 3-5 Simblist Road Port Botany NSW 2036	Container transport services provided as part of ACFS Port Logistics Pty Ltd. Container park / warehousing facility operated as part of ACFS Port Logistics Pty Ltd. • Wharf transport. • LCL/FCL/FAK pack/unpack. • Customs Depot licenced under section 77G. • AQIS Accredited Category 1.1. • Quarantine wash bay. • Over dimensional cargoes. • FCL storage R&D 6/24-hours Sunday on application. • Refrigerated container power storage. Leased to ACFS Port Logistics Pty Ltd by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	BAPS entity Head lease to be retained by Ports entity.
16		Port Melbourne Appleton Container Depot 38-72 Appleton Dock Road, West Melbourne VIC 3003	Container depot operated as part of ACFS Port Logistics Pty Ltd. Intermodal terminal that provides container transport to and from the Port. • Equipment includes 100 Prime Movers – 20' & 40' skels, Super B Double combination sets and Sideloaders trailers. • Ability to de-stuff containers onto pallets at own facility. • Ability to store pallets. • Capacity to store pallets. • Ability to conduct regulatory (AQIS and Customs) inspections on site. • FAK unpacking available. Leased to ACFS Port Logistics Pty Ltd by Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries).	BAPS entity Head lease to be retained by Ports entity.

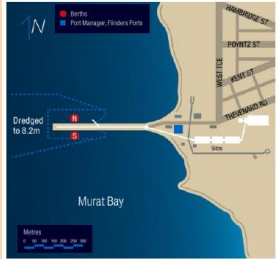
Item	Operation	Address	Description	Relevant operating entity
17		Port Melbourne Container Park and Depot Coode Road 53-121 Coode Road, West Melbourne VIC 3003	Empty container park, container depot and transport services operated as part of ACFS Port Logistics Pty Ltd. This site is leased to ACFS Port Logistics Pty Ltd by one of the subsidiaries of Asciano Holdings (Containers) Pty Ltd. The Port of Melbourne Corporation's public port development plan and strategy documents identified this site for the potential expansion of the East Swanson Dock Container Terminal and integration of the terminals with the transport services, container freight stations and storage functions to the north of Coode Road.	BAPS entity Head lease to be retained by Ports entity.
18		Port of Fremantle Container Transport  http://asciano.com.au/patrick/logistics	Container transport services provided as part of ACFS Port Logistics Pty Ltd. ACFS Port Logistics Pty Ltd has a licence from Asciano Holdings (Containers) Pty Ltd (through certain of its 100% owned subsidiaries) to use part of the Patrick Container Terminal leased site for the purposes of ACFS Port Logistics Pty Ltd (see aerial photograph provided separately).	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
	 Patrick BAPS			
				
19	50% interest in automotive terminal operator AAT		AAT is an incorporated 50/50 joint venture between: • P&O Wharf Management Pty Limited, a wholly owned subsidiary of Qube; and • Plzen Pty Limited, a wholly owned subsidiary of Asciano. AAT currently operates automotive terminals at the following Australian ports: • Port Adelaide, at Outer Harbor (South Australia) – which is an export based operation and will only continue until the closure of Holden’s manufacturing plant which is expected to occur by 2017; • Port of Melbourne, at Appleton Dock and Webb Dock West (Victoria) – although this operation will only continue until a new automotive terminal operated by MIRRAT commences operations. The current lease at these facilities expires in 31 December 2017; • Port Kembla (New South Wales); and • Port of Brisbane, at Fisherman Islands Cargo Terminal (Queensland).	To be acquired by Qube subject to a separate ACCC review.

Item	Operation	Address	Description	Relevant operating entity
<i>Patrick Regional Logistics</i>				
20	Wagga Wagga Rail Terminal	Cnr Bomen and Dampier Streets, Wagga Wagga NSW 2650 Located at the rail siding in Bomen Industrial Estate in Wagga Wagga	Regional intermodal terminal owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) and licenced to Asciano Holdings (Containers) Pty Ltd (through one of its 100% owned subsidiaries).	BAPS entity ⁵ Asciano/PN entity to remain the owner and licence to be granted to a BAPS entity.
21	Riverina Rail Terminal	Griffith Rail Yard, Railway Street, Griffith NSW 2680	Regional intermodal terminal owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) and licenced to Asciano Holdings (Containers) Pty Ltd (through one of its 100% owned subsidiaries).	BAPS entity Asciano/PN entity to remain the owner and licence to be granted to a BAPS entity.
22	Bathurst Rail Terminal	95 Lee Street, Kelso	Regional bulk & intermodal terminal owned by Asciano Properties Operations Pty Ltd but leased to Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) for rail operation.	BAPS entity
<i>Patrick Automotive and General Stevedoring [Note: Unless otherwise stated, the rights to operate from the sites below are short term licences to stevedore]</i>				
23	Fisherman Islands, Brisbane	Berth 3, Port Drive, Port of Brisbane QLD 4178	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services.	BAPS entity
24	Auckland Point, Gladstone	Cnr MacFarlane & Mark Fenton Drive, Gladstone QLD 4680 (Wharf 4)	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides stevedoring, storage, rail loadout, transport and AQIS services to LNG and other customers, with the capability to offer full supply chain services from ship to field site. These facilities also offer rail access, open and undercover storage, and reefer facilities.	BAPS entity

⁵ Following the current internal restructure, Wagga Wagga and Riverina Rail terminals will be legally transferred to BAPS (from a Ports entity). However, from an operational perspective, they are part of and will remain part of the BAPS business.

Item	Operation	Address	Description	Relevant operating entity
			Patrick Stevedores currently have a mobile crane available on this wharf. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) leases property at this site behind Wharf 4.	
25	Port Alma, Gladstone	 http://asciano.com.au/patrick/stevedoring	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides stevedoring, storage, rail loadout, transport and AQIS services to LNG and other customers, with the capability to offer full supply chain services from ship to field site. These facilities also offer rail access, open and undercover storage, and reefer facilities.	BAPS entity
26	Mackay	 http://asciano.com.au/patrick/stevedoring http://www.nqbp.com.au/mackay/	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services.	BAPS entity
27	Kooragang Island	Lot 6, Corner Heron & Greenleaf Roads, Kooragang Island NSW 2304	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides bulk stevedoring services. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) leases property at this site from Port of Newcastle.	BAPS entity
28	Port Kembla	AAT common user berths and Jetty No 6 common user berth	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services.	BAPS entity
29	Melbourne	Common user	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
		facilities including Appleton Dock and Webb Dock West	subsidiaries) provides general stevedoring services.	
30	Portland		Log marshalling, warehousing and general stevedoring services. A lease is held by Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) in respect of areas used for Log marshalling and warehousing.	BAPS entity
31	Port Adelaide	263A St Vincent Street, Port Adelaide SA 5015 	Common user facility. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services. Commodities handled includes: grains & seeds, fertilisers, agricultural commodities, iron & steel, break-bulk and general cargoes. http://www.flindersports.com.au/pdf/PtUserGuideFacilities.pdf Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) leases a number of areas at and around berth 29.	BAPS entity
32	Thevenard		Common user facility. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services. Major export cargoes handled through the port include gypsum, grains, seeds and salt exports, and fertiliser imports. http://www.flindersports.com.au/pdf/PtUserGuideFacilities.pdf	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
33	Port Lincoln		Common user facility. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services. - Grains and seeds are the principal exports and fertiliser and petroleum products are the major imports handled through the port. - Berths: 4 (Bulk Loading Grain), 5 (Bulk Loading Grain), 6 (Fertiliser). Shipping pier connected to railway system. http://www.flindersports.com.au/pdf/PtUserGuideFacilities.pdf	BAPS entity
34	Wallaroo		Common user facility. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services. - Principal commodities handled through the port are fertiliser imports and grain and seed exports. - Berths: 2N (bulk grain), 1S (fertiliser imports). http://www.flindersports.com.au/pdf/PtUserGuideFacilities.pdf	BAPS entity
35	Port of Fremantle	Berth 2, North Quay, Birksgate Road, North Fremantle WA 6159	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides general stevedoring services.	BAPS entity
36	Australian Marine Complex (AMC) Henderson	AMC 5, Nautical Drive, Henderson WA 6166	Transportation of goods and warehousing. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) previously provided truck receipt, discharge, storage, AQIS quarantine and stevedoring services to Agility Logistics, the prime subcontractor for the Gorgon LNG Project at Henderson.	BAPS entity
37	Henderson Storage	Corner Russell Road and Rockingham Road, Henderson WA 6166	One of many bulk storage facilities available off wharf. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) holds a lease over a number of storage sheds at the facility at this address.	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
38	Port of Port Hedland	 http://asciano.com.au/patrick/stevedoring http://www.pilbaraports.com.au/	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) has a stevedoring licence to provide services at the Port of Port Hedland.	BAPS entity
39	Port of Dampier	MOF Road, Dampier Cargo Wharf, Dampier WA 6713	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) supports the offshore oil and gas industry by providing a 24/7 stevedoring service. With mobile cranes available onsite, Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) has the capability to service the offshore industry at short notice to accommodate last minute rig requirements. They also manage a lay-down area suited for temporary container storage, in addition to providing mooring, unmooring and AQIS services. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) leases an on-site storage area within the Dampier Wharf precinct from which it provides packing and storage services for bulk products.	BAPS entity
40	Port of Geraldton	Connell Rd, Geraldton WA 6530	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) has a non-exclusive stevedoring licence to provide services at the Port of Geraldton.	BAPS entity
41	Port of Bunbury	Lot 1035 The Strand, Bunbury WA 6230	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) is currently seeking a stevedoring licence to provide general stevedoring services.	BAPS entity
42	East Arm Port,	East Arm Port,	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
	Darwin	Berrimah Road, Berrimah NT 0828 8 and 12 Mendis Road, Berrimah NT 0828	subsidiaries) provides stevedoring services to support Darwin's sea and land-based oil and gas operations, including management of specialised heavy lift cargoes and offshore rig tender vessels. The storage and lay-down areas include approximately 18,000 square metres of on-wharf open storage and a 9,250 square metre off-wharf facility in the East Arm industrial precinct.	
<i>80% interest in Autocare (and 50% interest in Car Compounds Australia)⁶</i>				
43	Fisherman Islands, Brisbane Autocare	45 Port Drive, Port Of Brisbane QLD 4178	Motor vehicle handling, including: • Vehicle transport Australia-wide (via road, rail, sea). • Vehicle processing and storage. • Vehicle accessory fitment and parts management. • New vehicle pre delivery inspection & registration. • Vehicle rectification and repair. • Detailing and showroom preparation. • Customs brokerage and freight forwarding services. Site leased to Patrick Autocare Pty Ltd by Australian Amalgamated Terminals Pty Ltd.	BAPS entity (80% interest in Patrick Autocare Pty Ltd to be transferred from a Ports entity to a BAPS entity as part of the proposed transaction. ⁷)
44		FDN / FDO Lease – main Whimbrel Street lease with Port of Brisbane at 11- 19 Whimbrel street FDP Lease – lease at 23 Whimbrel Street	Services as described above. The sub-sub-lease of Whimbrel street, Port of Brisbane (Stage 1 Lease) and the sub-sub-lease of Whimbrel Street, Port of Brisbane (Stage 2 Lease) are each held by Asciano Holdings (Containers) Pty Ltd (through one of its 100% owned subsidiaries) (to be transferred to a BAPS entity) as tenant.	BAPS entity
45	Townsville	680 Ingham Road,	Services as described above.	BAPS entity

⁶ The 50% interest in Car Compounds Australia sits within a BAPS entity. See further <http://www.patrickautocare.com.au/>.

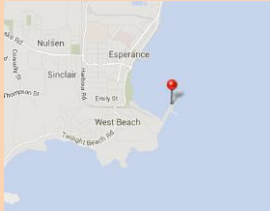
⁷ As a result of this transfer, the leases held by Patrick Autocare Pty Ltd below are each listed as having a BAPS entity as the relevant post-transaction operating entity.

Item	Operation	Address	Description	Relevant operating entity
	Autocare	Bohle QLD 4818		
46	Port Kembla Autocare	17 Reddalls Road, Kembla Grange, NSW 2526, together with additional in land sites	Services as described above.	BAPS entity
47	Ingleburn Autocare	43-49 Stennett Rd, Ingleburn NSW 2565	Services as described above. The long term lease of part of 41-47 Stennett Road, Ingleburn, from the Trust Company Limited (formerly owned by Asciano Properties Operations Pty Ltd, a head office company) are each held by Asciano Holdings (Containers) Pty Ltd (through one of its 100% owned subsidiaries) (to be transferred to a BAPS entity) as tenant.	BAPS entity
48	Laverton Autocare	100 Cherry Lane, Laverton North VIC 3026, together with additional nearby sites	Services as described above.	BAPS entity
49	Webb Dock West Autocare	Berth 3-5, Dockside Road, Port Melbourne VIC 3207	Services as described above.	BAPS entity
50	Fremantle Autocare	 http://asciano.com.au/patrick/autocare	Services as described above.	BAPS entity
51	Perth Autocare	2 Abbott Road, Perth International Airport, Perth WA 6105	Services as described above.	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
52	Darwin Autocare	10 Coonawarra Road, Winnellie NT 0820	Services as described above.	BAPS entity
53	Port Adelaide Autocare	Oliver Rogers Road, Outer Harbor SA 5018	Services as described above.	BAPS entity
54	Adelaide Autocare	224 Eastern Parade, Port Adelaide SA 5015	Services as described above.	BAPS entity
55	Devonport Autocare	100 Wright St, Devonport TAS 7310	Services as described above.	BAPS entity
<i>Port/facility ownership or management interests</i>				
56	Port of Hastings (Western Port) Management	Stony Point Road, Crib Point VIC 3919	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages the Port of Hastings under a Port Management Agreement that covers harbour control, operations, port administration and maintenance. Port of Hastings mainly deals with liquid bulk and general cargo and Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages the two major petrochemical berths and a multi-user jetty facility. http://asciano.com.au/patrick/ports	BAPS entity
57	Port of Geelong 50% interest in Port of Geelong Unit Trust; and Management	Corio Quay Road, North Geelong VIC 3215	Port of Geelong mainly deals with liquid bulk, dry bulk and general cargo. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages the Port under an operating agreement with the owner of the port, Port of Geelong Unit Trust. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) owns 50% of Port of Geelong Unit Trust, with the other 50% owned by Deutsche Asset Management on behalf of an institutional client. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages 15 wharves, including 620m of berth at Lascelles Wharf for project work, 95 hectares of port land, five cargo storage sheds,	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
			a ship loader, two shore-based luffing cranes, and other cargo-handling equipment. http://asciano.com.au/patrick/ports http://www.geelongport.com.au/	
58	50% interest in Albany Bulk Handling Facility joint venture	Lot 10, Princess Royal Drive, Albany WA 6331	The joint venture facility is a woodchip export facility comprising rail receival facilities, conveyors, pad, stacker, reclaimer and ship-loader. The other 50% interest is owned by Itochu Corporation. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) developed and currently operates the facility. http://asciano.com.au/patrick/ports	BAPS entity
59	Patrick Marine Facility, Dampier, Western Australia	Dampier, Western Australia	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) acquired Apache Energy's Dampier Floating Deck platform to service oil and gas support vessel operations. It provides two additional berths and a range of on-berth vessel provisioning / support services. http://pmf.patrick.com.au/	BAPS entity
60	Cocos Island Port Management	West Island, Cocos Islands, WA. 6799	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages the Cocos Island Port (part of the Indian Ocean Territories) for the Commonwealth Government. http://asciano.com.au/patrick/ports	BAPS entity
61	Christmas Island Port Management	21 Jalan Pantai, Christmas Island, WA. 6798	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) manages the Christmas Island Port (part of the Indian Ocean Territories) for the Commonwealth Government. http://asciano.com.au/patrick/ports	BAPS entity
62	Port of Newcastle Eastern Basin lease	Corner Cowper & Bourke Streets, Carrington NSW 2294	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) lease a berth and storage on the wharf. Three stevedores operate through the Port of Newcastle and there are multiple common user berths. Cargo / commodity: break bulk, general cargo and containers. Facilities include: • 7,120 square metres storage shed;	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
			10,000 square metres uncovered staking area; and - Rail access. http://www.portofnewcastle.com.au/Shipping--Operations/Berths--Facilities/	
63	Port Kembla BlueScope Steel private berth operations	Berths 109, 110, 111, 112, 113, Inner Harbour, Port Kembla 	BlueScope Steel private berth operations in Port Kembla. Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) holds a licence to use particular parts of the Bluescope Steel Berths for its operations as well as for the provision of services to Bluescope http://www.portkembla.com.au/page/port-operations/berth-information/bluescope-steel-berths/	BAPS entity
<i>Specialised bulk services</i>				
64	 Gracemere Depot	134 Middle Road, Gracemere QLD 4702	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) owns or leases these sites to provide transportation, storage and management of bulk products such as minerals, grain, fertiliser and carbonaceous products. http://asciano.com.au/patrick http://www.mountainindustries.com.au/	BAPS entity
65	Teal Street Depot	5 Teal Street, Kooragang Island NSW 2304		BAPS entity
66	Egret Street Depot	23 Egret Street, Kooragang Island NSW 2304		BAPS entity
67	St Marys Depot	129-139 Dunheved		BAPS entity

Item	Operation	Address	Description	Relevant operating entity
		Cct, St Marys NSW 2760		
68	Forbes Depot	Abattoir Rd, Forbes NSW 2871		BAPS entity
69	South Australia Depot	20 Solvay Rd, Osborne SA 5017		BAPS entity
70		Small operations in Australia (Bathurst, Portland and Geelong).	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides log marshalling and forestry harvesting and processing services. Most of the operations are in New Zealand. There is also some temporary work in Gladstone following cyclone impact on logs for transport. http://asciano.com.au/patrick http://asciano.com.au/c3-limited	BAPS entity
71	Port Augusta, Whyalla Common user facility	Blast Furnace #2 Wharf, OneSteel Plant, Port Augusta Road, Whyalla SA 5600	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) provides unique bulk services and operations for Arrium. http://www.arrium.com/our-businesses/arrium-mining	BAPS entity
72	Port of Esperance Common user facility	 http://asciano.com.au/patrick/stevedoring http://www.esperanceport.com.au/	Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) specialised bulk services or operations at common user facility.	BAPS entity

Item	Operation	Address	Description	Relevant operating entity
73	Port Pirie Common user facility		Asciano Holdings (General & Bulk) Pty Ltd (through one of its 100% owned subsidiaries) specialised bulk services or operations for Toll at common user facility. - Commodities handled in this port are Grains & Seeds, Mineral Concentrates, Coal, Zinc & Lead, and General Cargo. - Berths: 5 (general cargo), 6 (ore exports), 7 (general cargo / container), 8 (lead export), 9 (lead export / coal import), 10 (bulk imports). http://www.flindersports.com.au/pdf/PtUserGuideFacilities.pdf	BAPS entity
				
PN Bulk (QLD & NSW/VIC Businesses)				
74	PN Coal		Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) provides coal haulage services with a footprint that spans both east and west coasts of Australia. PN has nearly 6,000 specialised coal wagons and 600 locomotives. http://asciano.com.au/pacific-national/coal	Asciano/ PN entity
75	PN Other Bulk		Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) provides bulk rail haulage services for a range of bulk cargoes including industrial products, grain, bulk liquids, non-ferrous ores, stone aggregate, limestone and cement products, slag and other waste. http://asciano.com.au/pacific-national/bulk	Asciano/ PN entity
76	Sites	Hunter Bulk Terminal, Carrington 371 Industrial Drive, Carrington NSW	Freehold held by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
77		Greta Train Crew Facility 8 Mansfield Street,	Freehold held by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity

Item	Operation	Address	Description	Relevant operating entity
		Greta NSW		
78		Clyde Bulk Terminal 322 Parramatta Road, Auburn NSW	Freehold held by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
79		Kooragang Island Windmill Road and Cormorant Road	Maintenance facility owned on a freehold basis by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
80		Nebo Train Crew Facility Braeside Road, Nebo QLD	Freehold held by Asciano Properties Operations Pty Ltd (an Asciano head office company).	Asciano/ PN entity
81		Gogango Evergreen Road, Westwood QLD	Property owned by Asciano Properties Operations Pty Ltd (an Asciano Head office company).	Asciano/ PN entity
<i>PN National Intermodal</i>				
82	Interstate Intermodal operations		http://asciano.com.au/pacific-national/intermodal	Asciano/ PN entity
83	Steel		http://asciano.com.au/pacific-national/steel	Asciano/ PN entity
84	Regional Services Queensland	Brisbane – intrastate terminal Lofter Street, Tennyson Qld 4108	Property owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
85		Rockhampton Freight Terminal Goss Street, Port Curtis Qld 4700	Property owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity

Item	Operation	Address	Description	Relevant operating entity
86		Mackay Freight Terminal Michelmore St (Entry via Len Shield St), Mackay Qld 4740	Property owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
87		Townsville Freight Terminal Cnr Hunter Street & Bruce Hwy, Stuart Qld 4811	Property owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries). This site is divided into three areas: PN Intermodal Operations, Toll Lease, and PN Maintenance Area.	Asciano/ PN entity
88		Cairns Freight Terminal Jackson Drive, Woree Qld 4870	Property owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
	PN Interstate Intermodal Terminals			
89	Port Melbourne, Appleton Dock Rail Terminal	Situated adjacent to Patrick’s East Swanson Dock Container Terminal	The facility handles both intrastate and interstate rail and is operated by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) under licence from Asciano Holdings (Containers) Pty Ltd (through one of its 100% owned subsidiaries) which leases the site from the Port of Melbourne Corporation. Using this site Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) provides a rail service to Patrick Terminal customers.	Asciano/ PN entity Head lease to be retained by Ports entity.
90	South Dynon Rail Terminal (Melbourne Freight Terminal – Dynon Rd Footscray VIC)	Situated north of the Swanson Dock International Container Terminals between Footscray and Dynon Roads	Leased from Victorian Rail Track by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries). The facility handles mainly interstate domestic containers together with a small volume of international and intrastate cargo. 13 kilometres (total length) of rail track (including 640 m of dual-gauge), with a longest workable siding of 1200 metres. - The sidings are serviced by two rail-mounted gantries and reach stackers.	Asciano/ PN entity

Item	Operation	Address	Description	Relevant operating entity
91	Perth Freight Terminal	4 Fenton Street, Kewdale WA 6105	Leased from Public Transport Authority of WA by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries). Intermodal terminal. Part of the Kewdale-Forrestfield hub that is accessible by road, rail and air. It handles international, interstate, high value fast moving consumer goods and bulk regional products.	Asciano/ PN entity
92	Adelaide Freight Terminal	 http://asciano.com.au/pacific-national/intermodal Pedder Crescent, Regency Park, South Australia	Intermodal terminal owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
93	Brisbane Freight Terminal	Kerry Rd, Acacia Ridge QLD 4110	Intermodal terminal owned by Aurizon. Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) accesses the terminal under a Terminal Services Agreement.	Asciano/ PN entity
94	Alice Springs Freight Terminal	Whittaker Street, Alice Springs, NT	Intermodal terminal, owned by Genesse & Wyoming Australia, Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) accesses the terminal under a Terminal Services Agreement	Asciano/ PN entity
95	Sydney Freight Terminal	20 Dasea St, Chullora NSW 2190	Intermodal terminal owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries).	Asciano/ PN entity
96	St Marys Intermodal Terminal development	St Marys, 55-67 and 69-81 Lee Holm Road, Western Sydney	Intermodal terminal development site owned by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries). Rail Corridor through middle of site leased by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) from Lendlease.	Asciano/ PN entity

Item	Operation	Address	Description	Relevant operating entity
97	Spotswood Loco Maintenance Facility	561 – 569 Melbourne Road, Spotswood VIC	Maintenance Facility for Intermodal Locomotives leased by Asciano Holdings (Rail) Pty Ltd (through one of its 100% owned subsidiaries) from Victorian Rail Track	Asciano/ PN entity
98	Parkes – Strategic Land Holding	Cnr Brolgan Road & Condobolin Road, Parkes NSW	Strategic land holding (Property owned by Terminals Australia Pty Ltd which is owned by Asciano Properties Operations Pty Ltd, an Asciano head office company)	Asciano/ PN entity

Attachment D – Aerial photographs of relevant ports

Port of Melbourne (container and logistics)



Note: All areas shown are indicative only.

- ACFS Sublease area
- PN Licence area
- Cargo Link area
- Patrick Leased areas

Port of Brisbane (container and logistics)



Note: All areas shown are indicative only.

- ACFS Sublease area
- Cargo Link area
- Patrick Leased areas

Port of Botany (container and logistics)



-  ACFS Sublease area
-  Cargo Link area
-  Patrick Leased areas

Port of Fremantle (container and logistics)



**Note: All areas shown
are indicative only.**



ACFS Sublease area

*Note: Cargo Link area is within ACFS licence area.
Exact location depends on container volumes.*



Patrick Leased areas